



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00425 | 5908 Ridge Road – Zoning Map Amendment
Date: January 9, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/9/2023
- Public Services Committee 1/17/2023
- Second reading 1/23/2023
- Public Services Committee 2/7/2023
- Third and final reading 2/13/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their January 3, 2023 meeting and voted 4-3 to recommend the Governing Body DENY this application, due to failure to meet review criteria 2 and 8.

The Planning Commission Staff report is attached and has not been changed.

Protest Petition:

Members of the public at the Planning Commission requested information on a protest petition. Per State Statute 15-1-603 and UDC 2.2.1.c.3, should a formal protest signed by at least 20% of the owners within 140' of the subject area boundaries (excluding rights-of-way) be submitted in sufficient time for the City Clerk to determine the validity of the petition prior to City Council vote at final reading of the ordinance, a zoning map amendment must be passed by an affirmative vote of at least $\frac{3}{4}$ of all of the members of the City Council.

Related Items:

- UDC-22-00425-01: Annexation
- UDC-22-00425-02: Final Plat

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-1 AGRICULTURAL AND RURAL RESIDENTIAL TO NR-3 NEIGHBORHOOD RESIDENTIAL – HIGH DENSITY FOR LAND LOCATED SOUTHWEST OF THE INTERSECTION OF RIDGE ROAD AND HOLLAND COURT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on January 3, 2023, the City of Cheyenne Planning Commission conducted a public hearing reviewing the proposed zone change that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

a parcel of land being a portion of Tract 25, Dell Range Addition and located in the northwest one-quarter of the northwest one-quarter of Section 22, Township 14 North, Range 66 West of the 6th Principal Meridian; being more particularly described as:

beginning at a found aluminum cap on a point of intersection of the west line of said Section 22 and the south right of way of Holland Ct; thence along said south right of way S89°31'21"E at a distance of 619.35 feet to a found iron pipe on the westerly right of way line of Ridge Road; thence continuing along said westerly right of way line S00°02'45"W at a distance of 753.31 feet to a point; thence leaving said westerly right of way line of Ridge Road N89°23'37"W at a distance of 619.54 feet to a found iron pipe on the west line of said Section 22; thence N00°03'36"E at a distance of 751.91 feet along the west line of said Section 22 to the point of beginning.

is hereby changed to NR-3 Neighborhood Residential – High Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

JANUARY 3, 2023

STAFF REPORT

FILE: UDC-22-00425: 5908 Ridge Road – Zoning Map Amendment

REQUEST: A request to rezone approximately 10.7 acres of land from County A-1 Agricultural and Rural Residential to NR-3 Neighborhood Residential – High Density, concurrent with an annexation

LOCATION: West of Ridge Road, south of Storey Boulevard

APPLICANT: Gateway Construction - Jason Stephan

AGENT: AVI - Brad Emmons

OWNER: Bedrock Dev LLC

ZONING: County A-1 Agricultural and Rural Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow apartment development

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the NW¼ of the NW¼ of Section 22, T14N, R66W of the 6th Principal Meridian, Laramie County, Wyoming to NR-3 Neighborhood Residential – High Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-1 Agricultural and Rural Residential to NR-3 Neighborhood Residential – High Density for 10.7 acres of land. The land is currently occupied with one residential unit in a rural residential development pattern. The proposed NR-3 zoning allows variety of residential uses in a compact neighborhood format.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	County A-1 Agricultural and Rural Residential	Rural residential
North	Urban Residential	County A-1, County MR Medium-density Residential	Rural residential
South	Urban Residential	County A-1, MR Medium Density Residential	Vacant, single-family residential
East	Urban Residential, Urban Transition Residential	NR-3 Neighborhood Residential – High Density, County A-1, MR	Apartments, rural residential, single-family residential
West	Urban Residential	MR	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property and most surrounding properties is Urban Residential. According to comprehensive plan there are many optimal City zones for the subject property's future land use designation, including NR-3 Neighborhood Residential – High Density.

Policies in PlanCheyenne also encourage a variety of residential development patterns, and the NR-3 zone allows a wide variety of residential uses.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby properties to the west, south, and southeast within City limits are zoned MR and developed with single-family homes. To the northeast, property within City limits is zoned NR-3 and developed with apartments. Property to the north and some land to the east are outside City limits and developed with rural residential uses. Property immediately to the south is vacant land in the County. The comprehensive plan anticipates urban residential development around the subject property.

While allowing a higher density than most of the surrounding zones, the NR-3 zone would allow for a variety of uses and is compatible with the mix of uses already found in the neighborhood.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current zoning is a County zone and a City zone is required to develop within City limits. The City zone most analogous to the current County A-1 zone is the City AG zone. The AG zone is intended for agricultural uses on large lots, but can also be used as a holding zone. The NR-3 zone does not require any buffers, and residential uses would be much more compatible with neighboring property.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Due to the constraints presented by previous development patterns, it is unlikely this property can meet the block standards of Article 4 for any proposed development; however, there is potential to make a connection through the property and stub out to the south. The existing block is about 180% oversize, and exceptions for various purposes are written into article four.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-3 zone is intended to develop with a variety of residential uses, typically in areas with a compact block pattern less than a ¼ mile from commercial development. This area is largely already developed with a variety of residential uses, but the block pattern is not particularly compact and there are few developed commercial or employment uses within a ¼ mile. Although there are limited opportunities to have commercial uses within walking distance, the land is near a major park and major traffic corridors. Higher intensity uses are appropriate near major transportation corridors.

The proposed zone change for the subject property largely **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed in concert with this rezoning is apartments. Should the proposed development not be executed after approval, there are a number of residential uses which would be eligible to be established at this location.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-3 zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

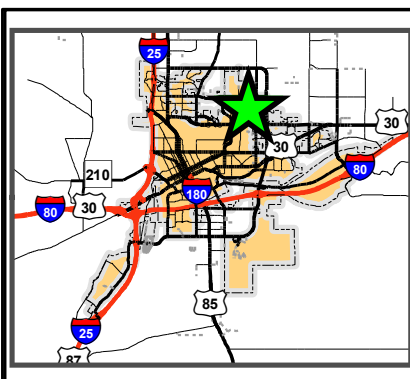
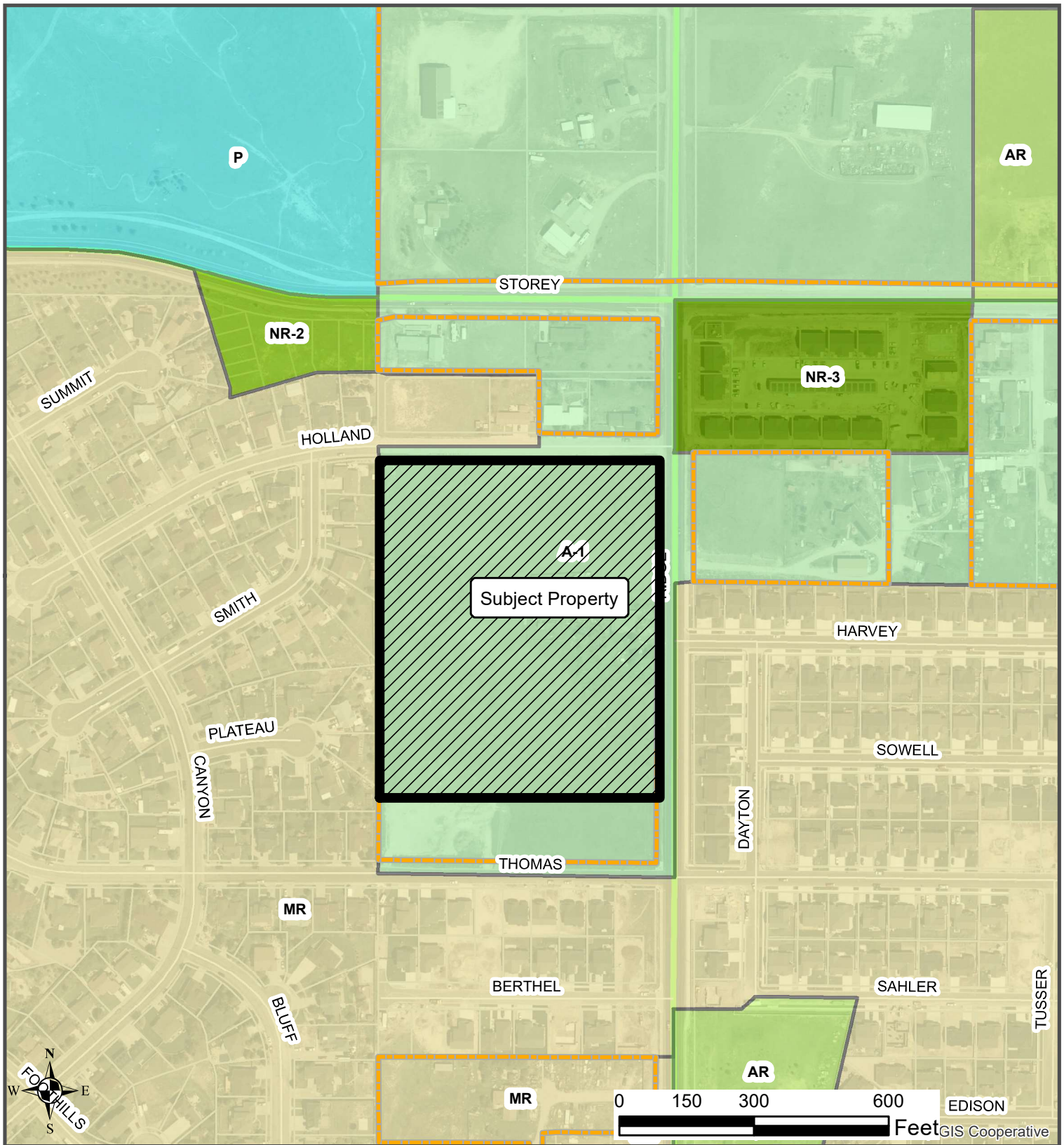
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-1 Agricultural and Rural Residential to NR-3 Neighborhood Residential – High Density.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

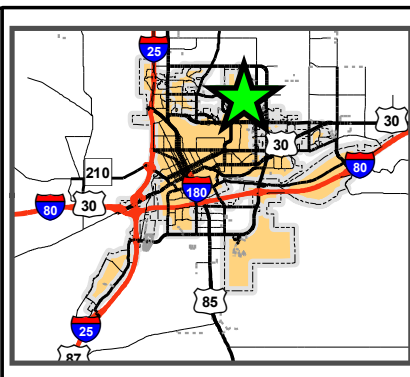
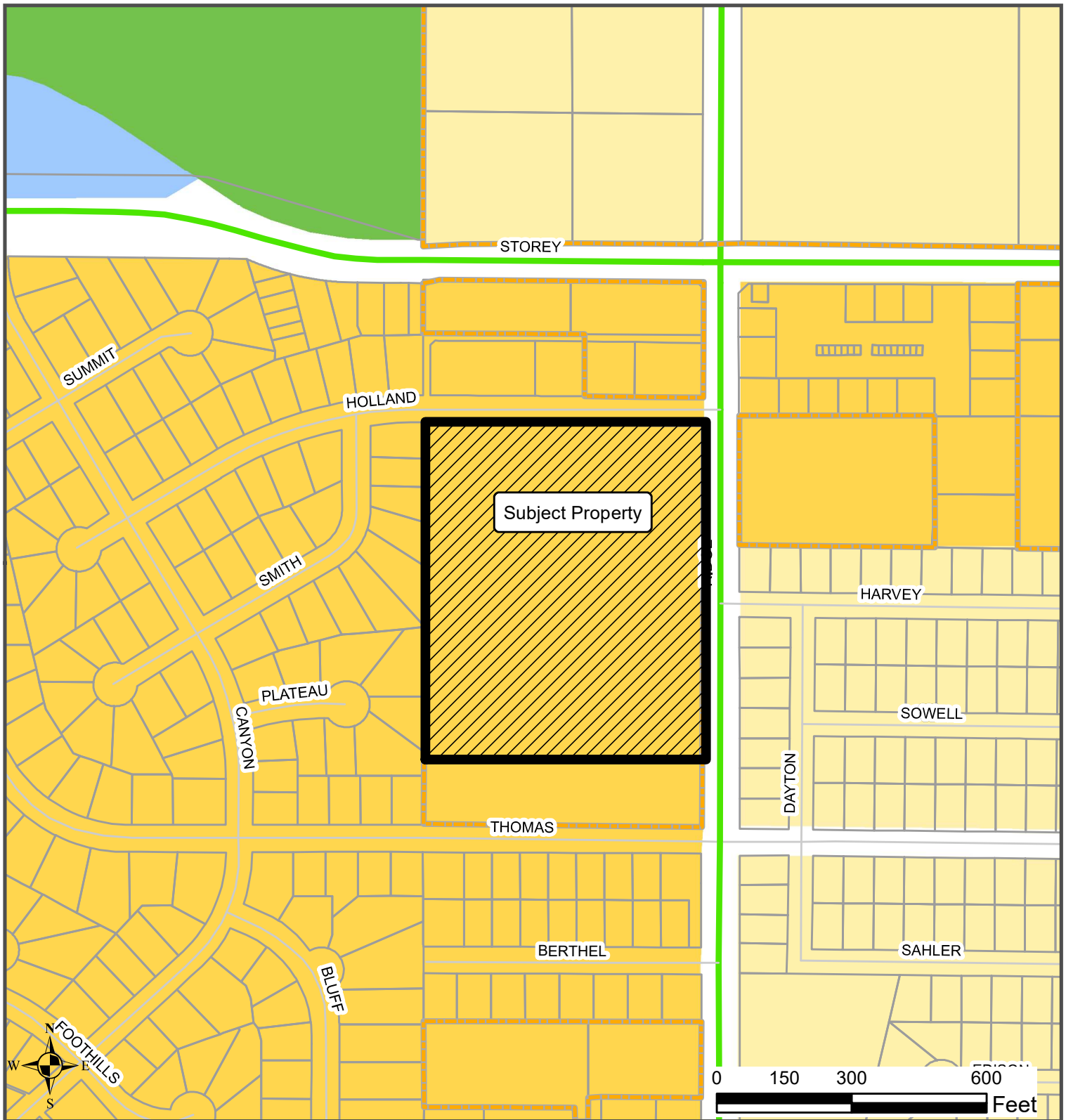


Attachment 1: Zoning Map UDC-22-00425

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



Attachment 2: Land Use Map UDC-22-00425

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **15 November 2022, 4:13PM**

Receipt number: **45**

Related form version: **10**

General Information

Applicant Name: **Gateway Construction - Jason Stephan**

Applicant Address: **1820 Dillon Ave Ste. 100A**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **3076328950**

Applicant Email: **jason-stephan@gateway-const.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Bedrock Dev LLC**

Owner Address: **PO Box 3244**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	3076328950
Owner Email:	jason-stephan@gateway-const.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	ridge loa_001.pdf
Project Location (Street Address or General Location):	5908 Ridge Road
Assessor's Parcel ID number(s)	R0017452
Total Project Area	10.7
Existing Zoning	Other: A-1
Requested Zoning	NR-3 - Neighborhood Residential - High Density

Application-Specific Questions

Written Statement	Annexation, zone change and plat to bring the parcel into the City and develop the property with apartments.
Zoning Map	4597_ZONE CHANGE.pdf
Notification Letter	neighbor notification gateway ridge.pdf Dell Range 6th Zone Change Notification_.pdf
Supporting Documents / Information	aerial photo of site.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

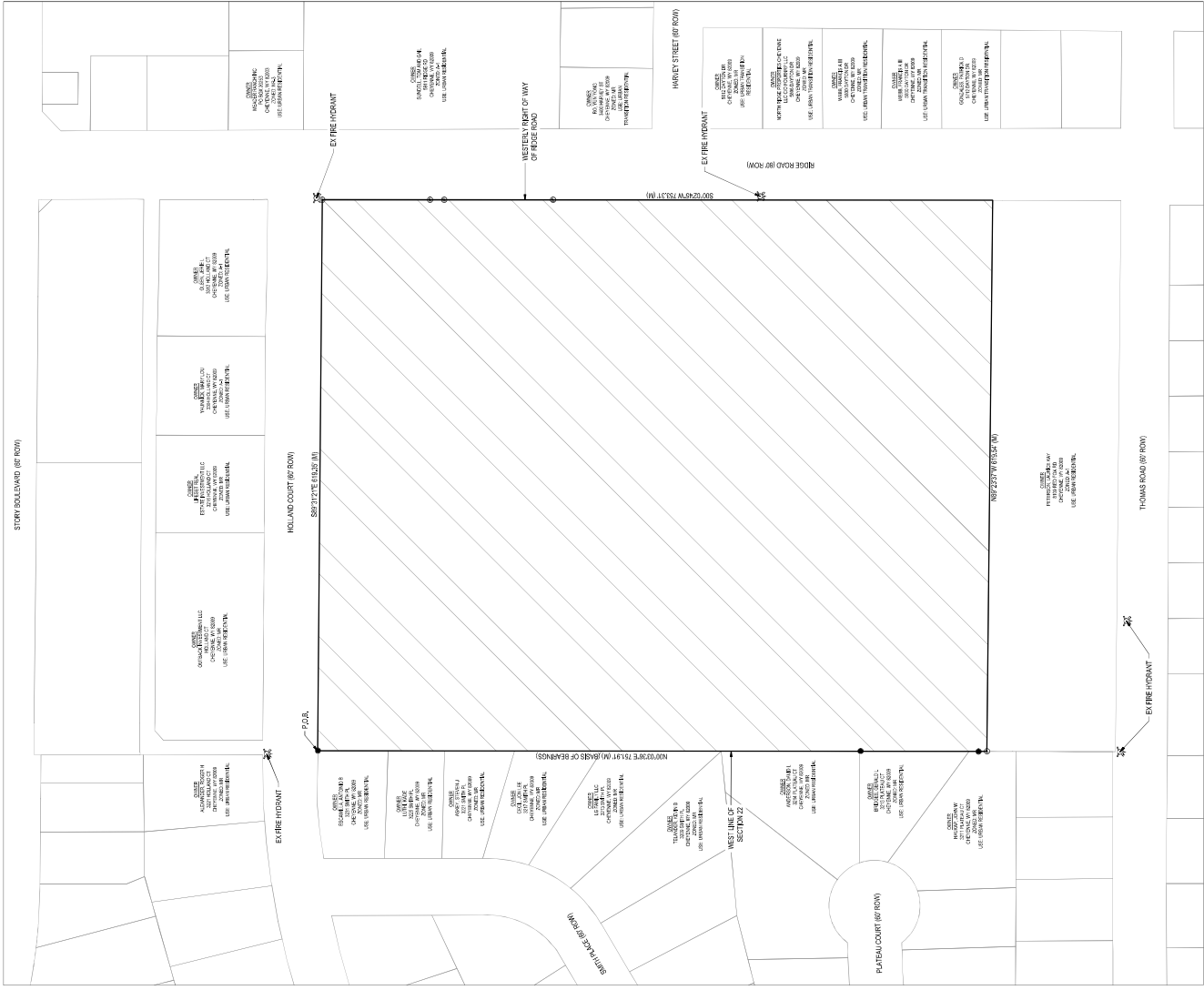
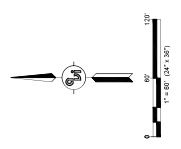
Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



LEGEND

 PROPOSED ZONING NR-3

- NOTES:
- EXISTING ZONING: COUNTY A-1
 - PROPOSED ZONING: NRQ
 - PROPOSED USE: TO BE DETERMINED
 - NUMBER OF TRIPS PER DAY: TO BE DETERMINED
 - NEAREST FIRE HYDRANT: SHOWN ON MAP

LEGAL DESCRIPTION

THE FOLLOWING IS A DESCRIPTION OF A PORTION OF, AND INCLUDING A PORTION OF, TRACT 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, 190, 191, 192, 193, 194, 195, 196, 197, 198, 199, 200, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231, 232, 233, 234, 235, 236, 237, 238, 239, 240, 241, 242, 243, 244, 245, 246, 247, 248, 249, 250, 251, 252, 253, 254, 255, 256, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 270, 271, 272, 273, 274, 275, 276, 277, 278, 279, 280, 281, 282, 283, 284, 285, 286, 287, 288, 289, 290, 291, 292, 293, 294, 295, 296, 297, 298, 299, 300, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 327, 328, 329, 330, 331, 332, 333, 334, 335, 336, 337, 338, 339, 340, 341, 342, 343, 344, 345, 346, 347, 348, 349, 350, 351, 352, 353, 354, 355, 356, 357, 358, 359, 360, 361, 362, 363, 364, 365, 366, 367, 368, 369, 370, 371, 372, 373, 374, 375, 376, 377, 378, 379, 380, 381, 382, 383, 384, 385, 386, 387, 388, 389, 390, 391, 392, 393, 394, 395, 396, 397, 398, 399, 400, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 431, 432, 433, 434, 435, 436, 437, 438, 439, 440, 441, 442, 443, 444, 445, 446, 447, 448, 449, 450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, 462, 463, 464, 465, 466, 467, 468, 469, 470, 471, 472, 473, 474, 475, 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486, 487, 488, 489, 490, 491, 492, 493, 494, 495, 496, 497, 498, 499, 500, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 531, 532, 533, 534, 535, 536, 537, 538, 539, 540, 541, 542, 543, 544, 545, 546, 547, 548, 549, 550, 551, 552, 553, 554, 555, 556, 557, 558, 559, 560, 561, 562, 563, 564, 565, 566, 567, 568, 569, 570, 571, 572, 573, 574, 575, 576, 577, 578, 579, 580, 581, 582, 583, 584, 585, 586, 587, 588, 589, 590, 591, 592, 593, 594, 595, 596, 597, 598, 599, 600, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 628, 629, 630, 631, 632, 633, 634, 635, 636, 637, 638, 639, 640, 641, 642, 643, 644, 645, 646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 841, 842, 843, 844, 845, 846, 847, 848, 849, 850, 851, 852, 853, 85

**ZONE CHANGE MAP
FOR
DELL RANGE ADDITION, SIXTH FILING**
A PORTION OF TRACT 25, DELL RANGE ADDITION
BEING SITUATED IN A PORTION OF THE NW $\frac{1}{4}$ OF SECTION
22, T14N, R66W OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED NOVEMBER 2022